

Court No. - 40

Case :- WRIT - C No. - 23130 of 2023

Petitioner :- Kanhaiya Lal Urf Kalua

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anil Kumar Aditya

Counsel for Respondent :- C.S.C.,Alok Mishra,Krishna Agarawal

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard learned counsel for the petitioner; learned Standing Counsel for the State and Sri Alok Mishra, learned counsel for respondent no.3 and 4-Electricity Department.
2. Petitioner claims that he is managing the affairs of the temple Thakur Hanuman Ji Maharaj, Khomacha Wali Bagichi, Hathras. As the said premises does not have electricity connection, petitioner has moved an application on 08.02.2023 for fresh electricity connection, which was ultimately rejected by Engineer, Electricity Distribution Division-I, Dakshinanchal Vidyut Vitran Nigam-respondent no.3 vide order dated 24.03.2023 on the ground that an Application No.66/2020 moved under Section 92(1) CPC is pending consideration before the District Judge, Hathras, seeking leave of the Court for filing a suit pertaining to the said property. The order dated 24.03.2023 is being assailed through present writ petition.
3. Record in question reflects that Suit No.477/1998 was preferred by the father of petitioner alongwith other incumbents, wherein, order of decree was passed on 30.01.2003. The said fact is reflected from the Application No.66/2020 appended as Annexure no.4 to the writ petition, which also reveals that while passing the said decree, it was observed that the premises in question is property of public and religious interest.
4. Admittedly, the electricity connection is being sought by the petitioner being manager of the said Temple. Learned counsel for the petitioner submitted that supply of electricity monopolized by U. P. Power Corporation is essential for life and it is impossible to live without electricity and the respondents are not justified in refusing to grant new electricity connection in the name of the petitioner only on the ground that an application is pending consideration

before competent civil court, which ultimately pertains to possession over the said property. In support of his submission, he has placed reliance on the order dated 26.05.2014 passed by Division Bench of this Court in ***Writ C No.28295/2014 (Seema Mansoor vs. U.P. Power Corporation Ltd. and others)*** and submits that application of petitioner can always be processed under Clause 4.4. of U.P. Electricity Supply Code 2005, which provides either for consent letter of owner of the premises or in the absence thereof indemnity bond by the lessee/tenant or occupier of the premises.

5. Learned counsel for Electricity Department fairly states that in case petitioner moves an application as per Annexure 4.2 of Clause 4.4. of the U.P. Electricity Supply Code 2005 and furnishes requisite indemnity bond, the respondent-Electricity Department will take a decision after hearing the parties in respect of sanction of electricity connection at the earliest.
6. Considering the facts and circumstances of the case, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition, on consent, is ***disposed of*** asking the petitioner to move an appropriate application as per Annexure 4.2 of Clause 4.4. of Electricity Supply Code 2005 before the respondent-Electricity Department seeking a new electricity connection within ten days. In case any such application is moved, we hope and trust that the respondent-Electricity Department would proceed to consider the same in accordance with law and take appropriate decision expeditiously but certainly after hearing the parties having stake in the matter.

Order Date :- 25.7.2023

A. Pandey